

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

2180 Harvard Street, Suite 500

Sacramento, California 95815

TEL: 916.929.1481

FAX: 916.927.3706

Attorneys for Defendants,
CSAA INSURANCE EXCHANGE,
CARBONE, SMITH & KOYAMA, and
MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM;
CSAA INSURANCE EXCHANGE;
DOES 1 through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**OPPOSITION TO PLAINTIFF'S
MOTION FOR LEAVE TO FILE
SECOND AMENDED COMPLAINT**

Hearing Date: May 6, 2026

Time: 9:00 a.m.

Dept: 301

Judge: Christine Van Aken

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

1 Defendants CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA; and
2 MICHAEL R. CHAMBERS (“Defendants”) hereby submit the following in opposition to the
3 Plaintiff’s motion for leave to file a second amended complaint.

4 **I. INTRODUCTION**

5 Plaintiff’s current effort to amend the pleadings, despite Defendants’ pending Anti-SLAPP
6 motion is completely precluded under California law—given Defendants’ pending Anti-SLAPP
7 motion. Plaintiff cites no authority to support the proposition that he can file his Motion for Leave
8 to Amend—as no such authority exists to support his motion.

9 Further, Plaintiff has not provided sufficient notice of this motion, by setting it for hearing
10 a mere 8 days after filing—and weeks before Defendants’ properly filed and served Anti-SLAPP
11 motion is to be heard.

12 Plaintiff’s procedurally defective and legally unsupportable motion practice is undeniably
13 designed to evade Defendants’ Anti-SLAPP motion. Further, Plaintiff’s conduct in this, and other
14 regards, is illustrative of his consistent gamesmanship and complete lack of respect for this Court,
15 his opposing parties, and the entire judicial process.

16 The Court must deny this bald-faced effort to improperly sidestep Defendants’ properly
17 filed, served, and noticed Anti-SLAPP motion to Plaintiff’s First Amended Complaint—which is
18 pending a properly noticed hearing on May 12, 2026, in this Court.

19 **II. FACTUAL BACKGROUND**

20 On April 9, 2026, Defendants’ counsel caused to be filed with the Court and served on
21 Plaintiff by Certified Mail and Email a copy of Defendants’ Special Motion to Strike per Code Civ.
22 Proc. § 425.16 (“Anti-SLAPP motion”). (*Declaration of Tyler J. O’Connell in support of*
23 *Opposition*, [hereinafter “*O’Connell Decl.*”] ¶ 2, **Ex. A**). Defendants’ Anti-SLAPP motion is based
24 on the nature of Plaintiff’s allegations as contained in the original Complaint and in the First
25 Amended Complaint (“FAC”). Plaintiff’s allegations squarely target Defendants’ litigation conduct
26 all from Plaintiff’s underlying personal injury jury trial—which Plaintiff lost by defense verdict in
27 April 2025. (*O’Connell Decl.* ¶ 3.)

28 ///

1 Prior to filing the Anti-SLAPP motion, Defendants’ counsel informed Plaintiff in writing,
2 and on a phone call, of Defendants’ intention of filing an Anti-SLAPP motion should he not
3 withdraw the FAC, in its entirety—as the entirety of the purported legal theories in Plaintiff’s FAC
4 focus inextricably on Defendants’ protected litigation conduct. (*O’Connell Decl.* ¶ 4.) Plaintiff
5 refused to withdraw the FAC, in writing and on two meet and confer phone calls with Defendants’
6 counsel. And Defendants’ Anti-SLAPP motion was properly filed on April 9, 2026. (*O’Connell*
7 *Decl.* ¶ 5.)

8 Subsequently, on April 19, 2026, ten (10) days after Defendants’ Anti-SLAPP motion had
9 been filed, Plaintiff sent an email to Defendants’ counsel’s office purporting to serve his Motion for
10 Leave to file a Second Amended Complaint. (*O’Connell Decl.* ¶ 6, **Ex. B.**)

11 On April 20, 2026, eleven (11) days after Defendants’ Anti-SLAPP motion had been filed,
12 Plaintiff sent an email to Defendants’ counsel’s office purporting to serve Defendants’ counsel’s
13 office a revised version of his Motion for Leave to file a Second Amended Complaint stating in this
14 email that, “The undersigned abandons and supersedes the April 19, 2026 POS-050 proofs
15 previously transmitted for PLAINTIFF-OPPOSITIONS-FULL-PACKET-WITH-EXHIBITS.pdf
16 and SAC-FULL-PACKET-WITH-EXHIBITS.pdf and substitutes the POS-050 proofs transmitted
17 herewith, which correctly list the documents contained in those consolidated PDFs.” (*O’Connell*
18 *Decl.* ¶ 7, **Ex. C.**)

19 Also on April 17, 2026 and April 20, 2026, Plaintiff sent two separate emails to Defendants’
20 counsel stating he would seek “impending professional consequences,” including “a negative mark
21 on [Defendants’ counsel’s] Bar license” should Defendants’ counsel not voluntarily withdraw or
22 “vacate these motions”—referring to Defendants’ pending Anti-SLAPP motion and Demurrer in
23 this litigation. (*O’Connell Decl.* ¶ 8, **Ex. D.**)

24 Then, on April 21, 2026, Plaintiff went ahead and filed the instant motion, setting it for
25 hearing on April 29, 2026—only 8 days away. (*O’Connell Decl.* ¶ 9.) Later that day, also on April
26 21, 2026, Plaintiff sent a follow up email to my office stating: “Regarding the Second Amended
27 Complaint and the Proof of Service filed on April 19, [it was not actually filed until April 21] the
28 Court requires a fifteen-day notice period. Accordingly, the hearing is scheduled for May 6, 2026.

1 at 9:00 a.m. at the San Francisco Superior Court. You can retrieve the new proof of service and the
2 clerk's copy stamped from the website." (*O'Connell Decl.* ¶ 10, **Ex. E.**)

3 Then, on April 22, 2026, Plaintiff sent another email to Defendants' counsel purporting to
4 serve a Motion for Leave to file a ***Third*** Amended Complaint ("TAC"). (*O'Connell Decl.* ¶ 11, **Ex.**
5 **F.**) Also on April 22, 2026, Plaintiff sent yet another email to Defendants' counsel purporting to
6 serve i) "a Motion to Deem Admitted, Compel, and for Sanctions"; ii) and a bevy of additional
7 written discovery requests, despite Defendants' Anti-SLAPP motion pending. (*O'Connell Decl.* ¶
8 12, **Ex. G.**)¹

9 Finally, Plaintiff persists in casting aspersions toward two parties to this action, in copying
10 those parties on many emails to Defendants' counsel's office. Those parties are: i) Ms. Priya
11 Navaratsingham; and ii) Mr. Alberto Reyna—both of whom, together constituted the defense team
12 from Plaintiff's underlying jury trial. Plaintiff, for unfathomable reasons, consistently refers to Ms.
13 Priya Navaratsingham as "Priya NavaRATsingham"—capitalizing the letters "R.A.T." in her last
14 name. Plaintiff also insists on referring to Mr. Alberto Reyna as "Ms. Alberta Reyna" in email
15 correspondences. (*O'Connell Decl.* ¶ 13, **Ex. H**) (*see also O'Connell Decl.* ¶ 7, **Ex. C** – for an
16 example of Plaintiff's insulting emails.)

17 Ultimately, in addition to the undeniable service of process and insufficient notice issues,
18 Plaintiff's Motion for Leave to File a Second Amended Complaint is barred as a matter of law, given
19 Defendants' pending Anti-SLAPP motion. (*O'Connell Decl.* ¶ 14.)

20 **III. LEGAL ISSUES BARRING THIS MOTION**

21 The defects in Plaintiff's current motion—and underlying First Amended Complaint—are
22 myriad. Suffice it to say, in the limited time available for Defendants to prepare this Opposition (in
23 light of Plaintiff's lack of proper notice of this motion), Defendants will concisely list those issues.
24 *First*, Plaintiff provided insufficient notice of this Motion. *Second*, Plaintiff's insufficient notice of
25 this motion substantially prejudices Defendants. *Third*, Plaintiff cannot plead around Defendants'
26 pending Anti-SLAPP motion by yet again amending the pleadings.

27 ///

28 ¹ Plaintiff's erroneous TAC Motion and Discovery motions and written discovery described in paragraphs 12-13 are
omitted out of respect for the Court's time—and only the emails from Plaintiff are provided as exhibits.

1 **A. Plaintiff Provided Insufficient Notice of Motion and Defective Service**

2 Under Code Civ. Proc. § 1005(a) “Written notice shall be given, as prescribed in
3 subdivisions (b) and (c), for the following motions:

4 (12) Motion ... for Leave to Amend pursuant to Section 585.5.

5 (13) Any other proceeding under this code in which notice is required, and no other
6 time or method is prescribed by law or by court or judge.

7 (b) Unless otherwise ordered or specifically provided by law, all moving and
8 supporting papers shall be served and filed at least 16 court days before the hearing.

9 ...and if the notice is served by facsimile transmission, express mail, or another
10 method of delivery providing for overnight delivery, the required 16-day period of
11 notice before the hearing shall be increased by two calendar days.

12 Here, Plaintiff served the instant Motion on April 19, 2026, via email upon Defendants.
13 (*O’Connell Decl.* ¶ 6, **Ex. B.**) Then, on April 20, 2026, Plaintiff served a second version of the
14 instant Motion, again via email, superseding the first version. (*O’Connell Decl.* ¶ 7, **Ex. C.**) Plaintiff
15 waited until April 21, 2026 to file the instant motion. (*O’Connell Decl.* ¶ 9.) Then, Plaintiff set this
16 motion for hearing on April 29, 2026. This service constituted only 9 days’ notice (from the April
17 20 service) and 8 days’ notice (from the April 21 filing) of the hearing on this Motion.

18 Plaintiff’s 9 days’ notice of this Motion is insufficient, as service by email requires a
19 minimum of 16 days’ notice—plus two (2) days for electronic service—for a total of 18 days’ notice
20 required. Plaintiff’s 9-day notice of this Motion is procedurally defective and subject to denial on
21 this basis alone.²

22 **B. Plaintiff’s Current Motion Substantially Prejudices Defendants**

23 Plaintiff’s defective service, gamesmanship, and unsupportable effort to amend the
24 pleadings substantially prejudices Defendants. First, Defendants’ Anti-SLAPP motion is still
25 pending. Plaintiff’s current effort, which he has patently admitted is to sidestep Defendants’ properly
26 filed, served, and noticed Anti-SLAPP motion, is prejudicial. Defendants’ have already incurred the

27 _____
28 ² Apparently, Plaintiff has since reset this motion for hearing on May 6, 2026; however, this is still deficient.
Assuming the April 20, 2026 service of this Motion remains operative, that would only constitute 16 days’ notice,
which does not supply the additional two (2) days required for electronic service. (*See* Code Civ. Proc. § 1005(b).)

1 burden and expense of preparing a lengthy and detailed Anti-SLAPP motion to Plaintiff's
2 unsupportable allegations. Were this Court to grant Plaintiff's instant Motion, the costs of additional
3 motion practice would be incurred upon Defendants, and the burden of further filings and review
4 imposed upon the Court.

5 Second, Plaintiff has provided insufficient notice of this Motion, creating a rush to the
6 Courthouse for Defendants to prepare and file an Opposition to a motion that has absolutely zero
7 merit.

8 **C. Plaintiff Cannot Amend The Pleadings Given Defendants' Pending Anti-SLAPP**
9 **Motion**

10 California law is abundantly clear: once a Defendant files an Anti-SLAPP motion, the
11 pleadings cannot be amended until that Anti-SLAPP motion is heard and ruled upon.

12 "There is a history of case law setting forth the rule that a party cannot amend around a
13 SLAPP motion. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 775; citing *Law Offices*
14 *of Andrew L. Ellis v. Yang* (2009) 178 Cal.App.4th 869, 880, 100 Cal.Rptr.3d 771; *Sylmar Air*
15 *Conditioning v. Pueblo Contracting Services, supra*, 122 Cal.App.4th at pp. 1054–1055, 18
16 Cal.Rptr.3d 882; *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073–1074, 112
17 Cal.Rptr.2d 397.) "We are not inclined to create instability in this rule by permitting a plaintiff to
18 amend its pleading." (*City of Colton, supra*, 206 Cal.App.4th at 775.)

19 "A plaintiff cannot avoid [an anti-]SLAPP motion by amending the complaint." (*Jackson v.*
20 *Mayweather* (2017) 10 Cal.App.5th 1240, 1263; citing *Hansen v. California Department of*
21 *Corrections & Rehabilitation* (2008) 171 Cal.App.4th 1537, 1547; accord, *Contreras v.*
22 *Dowling* (2016) 4 Cal.App.5th 774, 791, ["[a] plaintiff ... may not seek to subvert or avoid a ruling
23 on an anti-SLAPP motion by amending the challenged complaint ... in response to the
24 motion"]; *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th
25 1049, 1055;; see *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073, [§ 425.16 makes
26 no provision for amending the complaint; "we reject the notion that such a right should be
27 implied"].) *Jackson v. Mayweather, supra*, 10 Cal.App.5th at 1264.

28 ///

There is no legal rationale provided in the moving papers—nor, truly, under California law—to justify Plaintiff’s current effort to amend the pleadings, in light of Defendants’ pending Anti-SLAPP motion.

IV. CONCLUSION

Defendants respectfully request the Court deny Plaintiff's Motion for Leave to file a Second Amended Complaint, in light of Defendants' pending Anti-SLAPP motion.

Dated: April 23, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____

Chad S. Tapp
Tyle J. O'Connell
Attorneys for Defendants,
CSAA INSURANCE EXCHANGE,
CARBONE, SMITH & KOYAMA, and
MICHAEL R. CHAMBERS

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 23, 2026, I served the following document: **OPPOSITION TO PLAINTIFF'S**
7 **MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 is true and correct. Executed on Shingle Springs, California on April 23, 2026.

20 *Monique Schubert*
21 Monique Schubert